

**ORDINANCE NO. \_\_\_\_\_**

**ENTITLED: "AN ORDINANCE CREATING SECTION 10.24.200, VEHICLE MUFFLERS, EXCESSIVE SMOKE AND UNREASONABLE NOISE, AND REPEALING SECTION 8.56.050, MOTOR VEHICLE MUFFLERS, OF THE MUNICIPAL CODE OF THE CITY OF CHEYENNE, WYOMING, TO REVISE AND ENHANCE PROVISIONS GOVERNING VEHICLE MUFFLERS AND NOISE, TO ESTABLISH A GRADUATED PENALTY STRUCTURE FOR RECURRING OFFENSES, AND TO MAKE CONFORMING AMENDMENTS AS SPECIFIED."**

**BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:**

Section 1. That Section 10.24.200, Vehicle mufflers, excessive smoke and unreasonable noise, of Chapter 10.24, Rules of the Road Generally, of Title 10, Vehicles and Traffic, of the City of Cheyenne, Wyoming, is hereby created to read:

**10.24.200 – Vehicle mufflers, excessive smoke and unreasonable noise.**

- A. Every motor vehicle shall at all times be equipped with a muffler or other effective noise suppressing system in good working order and in constant operation. No person shall use a muffler cut-out, bypass or similar device.
- B. The engine and power mechanism of every motor vehicle shall be so equipped and adjusted as to prevent the escape of excessive fumes or smoke.
- C. No person shall make, continue to make, or cause any unreasonable noise originating in or from any vehicle. In addition, no person shall knowingly allow any vehicle they own, operate, or control to produce unreasonable noise, or operate any vehicle, regardless of ownership, in a manner or with equipment that produces unreasonable noise.
- D. Any peace officer enforcing this section is empowered to make a prima facie determination as to whether a noise is unreasonable based on consideration of one (1) or more of the following factors:
  - 1. The time of day at which the noise occurs;
  - 2. The location where the vehicle is being operated;
  - 3. The presence of pedestrians, bystanders, or other vehicles in the vicinity;
  - 4. The operation of a motor vehicle in a manner that causes unreasonable noise, including but not limited to unnecessary or rapid acceleration or deceleration, abrupt steering or turning, revving the engine, or tire squealing;

5. The operation of a vehicle with equipment improperly installed, removed or otherwise altered so as to produce unreasonable noise. This includes, but is not limited to unlawful, defective or modified exhaust systems, vehicles lacking a functioning muffler or exhaust system, or any other modification to any part of the vehicle that increases noise output;
  6. The presence or use of noise amplification equipment, including stereo or audio systems, operated at unreasonably high-volume levels; or
  7. Any other relevant factor or condition that would lead a reasonable person to conclude the noise is an unreasonable noise as defined in this section.
- E. Any person who violates any provision of this section is guilty of a misdemeanor and shall be subject to the following penalties:
1. For a first offense: a fine of not less than one hundred dollars (\$100.00) or more than two hundred dollars (\$200);
  2. For a second offense within a twelve (12) month period: a fine of not less than two hundred fifty dollars (\$250.00) or more than three hundred dollars (\$300.00); or
  3. For a third or subsequent offense within a twelve (12) month period: a fine of not less than four hundred dollars (\$400.00) or more than five hundred dollars (\$500.00), or by imprisonment for not more than six (6) months, or both. Each person cited for a third or subsequent offense within a twelve (12) month period shall appear in municipal court.
- F. This section shall not apply to any person operating loudspeakers, sound cars or sound trucks upon any street, alley or public property of the city, provided they have first obtained written permission from the police chief and a permit in accordance with Sections 8.56.060 and 8.56.070 of the city code.
- G. For purposes of this section:
1. “Motor vehicle” means as defined by Wyo. Stat. Section 31-5-102(a)(xxiv);
  2. “Unreasonable noise” means any sound, by volume or duration, that is or tends to be injurious to human health or welfare, or which unreasonably interferes with the quiet enjoyment of life or property; and
  3. “Vehicle” means as defined by Wyo. Stat. Section 31-5-102(a)(lviii).

Section 2. That Section 10.08.010, State law adopted, of Chapter 10.08, State Traffic Laws Adopted, and Section 10.12.020, Incarceration for certain traffic offenses, of Chapter 10.12, Administration and Enforcement, of Title 10, Vehicles and Traffic, of the City of Cheyenne, Wyoming, are hereby amended to read:

#### **10.08.010 - State law adopted.**

The following sections of state law as in effect on October 1, 2022, but not including any exclusions enumerated are adopted by reference and incorporated as if fully set out in this title. A copy of each provision is on file in the office of city clerk.

- A. Wyo. Stat. Sections 31-5-101 through and including 31-5-1402 and Section 31-5-1601, with the exception of ~~Section~~ Sections 31-5-953 and 31-5-1201, of the Uniform Act Regulating Traffic on Highways.
- B. Wyo. Stat. Sections 31-7-101 through and including 31-7-138.
- C. Wyo. Stat. Sections 31-4-101 through and including 31-4-104, General Offenses and Penalties.
- D. Wyo. Stat. Sections 31-2-201 through and including 31-2-303, The Title and Registration Act.
- E. Wyo. Stat. Sections 31-6-102 through and including 31-6-108 of the Implied Consent to Chemical Testing Act.
- F. Wyo. Stat. Sections 31-8-105, the prohibited acts and penalties of The Identification Card Act.
- G. Wyo. Stat. Sections 31-7-401 through and including 31-7-404, ignition interlock licenses.

#### **10.12.020 - Incarceration for certain traffic offenses.**

The municipal court may not impose a jail sentence for any traffic-related offense except for the following offenses:

- A. Reckless driving (city code Section 10.08.010 and Wyo. Stat. Section 31-5-229);
- B. Driving or having control of vehicle while under influence of intoxicating liquor or controlled substances (city code Section 10.08.010 and Wyo. Stat. Section 31-5-233);
- C. Driving while license cancelled, suspended or revoked (city code Section 10.08.010 and Wyo. Stat. Section 31-7-134);
- D. Fleeing or attempting to elude police officers (city code Section 10.08.010 and Wyo. Stat. Section 31-5-225);
- E. Duty to stop vehicle where accident involves death or personal injuries (city code Section 10.08.010 and Wyo. Stat. Section 31-5-1101); ~~and~~

F. Failure to maintain liability coverage (city code Section 10.08.010 and Wyo. Stat. Section 31-4-103); ~~and~~

G. Vehicle mufflers, excessive smoke and unreasonable noise, for a third or subsequent offense within a twelve (12) month period (city code Section 10.24.200).

The municipal court shall advise the defendant that the maximum sentence for any of the offenses listed in subsections (A) through (F) of this section is six (6) months in jail, a fine of seven hundred fifty dollars (\$750.00), or both. For an offense listed in subsection (G) of this section, the municipal court shall advise the defendant that the maximum sentence is six (6) months in jail, a fine of five hundred dollars (\$500.00), or both.

Section 3. That Section 8.56.050, Motor vehicle mufflers, of Chapter 8.56, Noise Control, of Title 8, Health and Safety, of the City of Cheyenne, Wyoming, is hereby repealed.

**~~8.56.050 – Motor vehicle mufflers.~~**

~~No person shall modify, repair or replace the exhaust system of a motor vehicle or operate a motor vehicle in a manner which will amplify or increase the noise emitted to a level above which will amplify or increase the noise emitted to a level above that emitted by the original exhaust system of that vehicle. No muffler or exhaust system shall be equipped with a cutout, bypass, or similar device.~~

Section 4. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 5. This ordinance shall be in full force and effect upon approval and publication.

**FIRST READING:**

\_\_\_\_\_

**SECOND READING:**

\_\_\_\_\_

**THIRD AND FINAL READING:** \_\_\_\_\_

\_\_\_\_\_  
PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

\_\_\_\_\_  
KYLIE SODEN, CITY CLERK

Published: \_\_\_\_\_  
Wyoming Tribune-Eagle